

TO BE PUBLISHED IN THE
EXTRA ORDINARY ISSUE
OF BALOCHISTAN GAZETTE



GOVERNMENT OF BALOCHISTAN
PUBLIC PROCUREMENT REGULATORY
AUTHORITY

Dated Quetta, the 01st March, 2021.

NOTIFICATION

No. BPPRA/1-31/2021/7039-53/. In exercise of the powers conferred by clause (d) of sub-section (20) of Section 5 of the Balochistan Public Procurement Regulatory Authority Act, 2009 (Balochistan Act No. VIII of 2009), the Government of Balochistan Public Procurement Regulatory Authority is pleased to make the Balochistan Public Procurement Code of Conduct, namely:-

A. PREAMBLE

- (1) This code of conduct may be called the Balochistan public Procurement code of conduct, 2020.
- (2) They shall come into force at once.
- (3) **Ethics:** Ethics is a philosophy of life based on the principle "do unto others as you would like others do unto you".
- (4) **Conduct:** The way one carries oneself, behave in a public eye, do things, respond to situations, give instructions, obey rules and think of or perceive the needs of the other human beings.
- (5) **Code.** Code is a body of rules that people with similar interests, aspirations, objectives, duties, activities and responsibilities must adhere to all times as long as they continue to remain in government service.
- (6) **The Need for Code of Conduct.** a) A Code of Ethics and Conduct is necessary owing to need that work performance and standards are to be of manifestly acceptable quality and appreciable level.
b) Ethics play a major role in public procurement. Being ethical means be in accordance with rules and standards for right conduct. It is well-known that a buyer can purchase anything, but one cannot buy reputation and integrity or honesty which is to be built by professional ethics, moral character, wisdom and reliability.
- (7) **Purpose.** The purpose of this code of conduct is to set out values and clear guidance on expected behavior of employees of procuring agency.

(8) **Authority.** a) This Code of Ethics has been issued by the Balochistan Public Procurement Regulatory Authority pursuant to Section 5(d) of the Balochistan Public Procurement Regulatory Authority Act, 2009 which provides that *"make regulations and lay down codes of ethics and procedures for the public procurement, inspection or quality of goods, services and works"*

(b) This Code of Ethics complements the Balochistan Public Procurement Regulatory Authority Act, 2009 and the Balochistan Public Procurement Rules, 2014. It doesn't replace any part of the Act or the Rules.

(c) The Balochistan Public Procurement Regulatory Authority will exercise oversight in the management of this Code of Ethics including remedial measures where any breach is reported.

B. APPLICABILITY.

(1) The Code of Ethics shall apply to all employees of procuring agencies, both those are members of public procurement committee and others.

(2) The Balochistan Public Procurement Regulatory Authority shall be subject to this Code of Ethics in its capacity as a procuring agency.

C. GENERAL PRINCIPLES.

(1) All the officers / officials engaged in public procurement activities have a duty to act in a manner which maintains and enhances the reputation of the Government of Balochistan and preserve the trust in the Provincial Government by:

- (i) Enhancing and protecting the standing of procurement activity;
- (ii) Maintaining the highest standard of integrity in all business relationship;
- (iii) Promoting the eradication of unethical business process;
- (iv) Enhancing the proficiency and stature of the procurement activity;
- (v) Ensuring total compliance with the legal framework.

(2) Procuring agencies shall ensure that procurements are conducted in a fair and transparent manner and the object of procurement brings value for money to the agency and the procurement process is effective and economical.

(3) No procurement proceedings shall be initiated without availability of budget.

(4) All procuring agencies shall prepare Annual Procurement Plan in detail for the financial year and upload on Authority's website.

(5) Procuring agencies shall not split or package a procurement plan with intention to shorten or facilitate the procurement process.

(6) A procuring agency shall ensure that specifications are such that allow the widest possible competition and shall not include references to brand names, catalogue number of similar classification.

(7) Procuring agencies shall ensure that well prepared Bidding Document with complete information giving all bidders equal chances used.

- (8) When preparing Bidding Document, the procuring agencies should avoid inclusion of conditions which are unfair, discriminatory or un-reasonable.
- (9) Information given by the procuring agencies to participants in public procurement should be accurate, true and fair and never designed to mislead.
- (10) Procuring agencies shall ensure that all correspondence to bidders are in writing signed by an authorized officer.
- (11) All procurement activities shall be undertaken keeping in mind the requirement for withstanding external scrutiny.

D. HEAD OF DEPARTMENT.

- (1) The Heads of Departments shall ensure Procurement Committee, Complaint Redressal Committee and any other committee is constituted timely and all committees perform their assignments without undue influence or interference from their offices or any other quarters.
- (2) The Heads of Departments shall ensure approval cases are disposed off without delay and within the bid validity period.
- (3) The Head of Departments shall ensure that all procurement related decisions including choice of method of procurement are decisions of the respective committee.
- (4) The Heads of Departments shall ensure that no un-warranting "Note" or "Summary" is initiated.
- (5) The Heads of Department shall be responsible for ensuring observance of the Code of Ethics by employees of the Department.

E. MEMBERS OF PROCUREMENT RELATED COMMITTEE.

- (1) Members of Procurement Committee shall avoid all types of conflict of interest described in Rule 2 (i) of Balochistan Public Procurement Rules, 2014.
- (2) All members shall be accountable for their actions in the procurement process.
- (3) All members on procurement committee shall serve, support and cooperate with one another and also accord mutual respect and courtesy without compromising their independent and mutually distinct roles.
- (4) Members of Procurement / Evaluation Committee shall not entertain or condone ratification of contract awards where decision has been taken outside the normal meeting of the committee.

(5) Members of committee undertaking evaluation shall perform their work diligently and expeditiously, strictly applying the stated evaluation criteria, without discrimination.

(6) All members shall maintain confidentiality in the evaluation of bids.

(7) Members of Procurement / Evaluation Committee shall avoid excessive socializing with members of business community who participate in public procurement.

(8) Members of Procurement / Evaluation Committee shall observe all the relevant laws and also others laws relating to health, safety standards and environment. This will also apply in the preparation of procurement specifications and in the inspection and acceptance of the procurement object.

F. OFFICIALS OF PROCURING AGENCIES

(1) Basic code for staff of procuring agencies shall be loyalty to the government, justice to those with whom they deal and faith in their profession.

(2) All officials shall comply with the letter and spirit of the law applicable to the public procurement system.

(3) No officer shall un-duly interfere or exert pressure on any member of a committee or any other official of a procuring agency to take a particular action which favors or tends to favor a particular bidder.

(4) All officials shall not allow patronage or nepotisms.

(5) Staff of the procuring agency shall not allow their activities to be unfairly influenced by un-authorized person from any quarter.

(6) Staff of the procuring agency shall carry out procurement activities in timely manner, including provision of required information and reports.

(7) Staff on proper requests for information, complaints or enquiries shall respond promptly and courteously.

G. SUPPLIER

(1) All suppliers must respond to bid invitation in an honest, fair and comprehensive manner.

(2) Suppliers must accurately reflect their eligibility and capacity to satisfy the requirements stipulated in Bidding Documents, and only submit bids and enter into contracts if they will fulfill all obligations of the contract.

(3) Suppliers should avoid any action that jeopardize officer's ability to respect their legal obligations.

- (4) For breach of any of the above conduct, a supplier will constitute grounds to be black-listed from future generated bidding opportunities either temporarily or permanently.

**SECRETARY
FINANCE DEPARTMENT**

**The Chief Controller,
Printing and Stationery, Department,
Balochistan, Quetta for publications.**

No. & Date Even.

Copy Forwarded to:-

1. The Additional Chief Secretary (Dev), Government of Balochistan, P&D Department, Quetta
2. The Senior Member/Members Board of Revenue, Balochistan
3. The Principal Secretary to the Governor Balochistan.
4. The Principal Secretary to the Chief Minister Balochistan
5. The Chairman, Chief Minister's Inspection Team, Balochistan
6. The Chairman, Balochistan Public Service Commission, Quetta
7. All Administrative Secretaries to Government of Balochistan.
8. The Accountant General Balochistan, Quetta.
9. The Secretary Balochistan Provincial Assembly, Quetta
10. All Commissioners in Balochistan
11. The Secretary, Provincial Mohtasib (ombudsman) Secretariat, Balochistan, Quetta
12. The Registrar, Balochistan High Court, Quetta
13. The Additional Secretary Staff to the Chief Secretary, Balochistan.
14. Master File

[Handwritten Signature]
(MANAGING DIRECTOR)
Balochistan Public Procurement Regulatory Authority

